

#	Case Name	Tentative
1	ABNG Real Estate Investment LLC vs. Moderna Design Builders Inc 2025-01517652	Motion to Strike Answer Off calendar. See notice filed 6/2/26 (ROA 106).
2	Ace Property and Casualty Insurance Company vs. Northwood Villas Maintenance Corporation 2024-01439117	Motion for Summary Judgment and/or Adjudication Cross-Defendant Truck Insurance Exchange's Motion for Summary Judgement is DENIED. Cross-Defendant's alternative Motion for Summary Adjudication is DENIED as to Issues 1 and 2. Cross-Complainant's evidentiary objections are OVERRULED. Cross-Defendant's Request for Judicial Notice is GRANTED. (Evid. Code §452, subd. (d) [court records].) The Court does not take judicial notice of the truth of the contents of any of the court filings Cross-Defendant requests to be judicially noticed. Cross-Defendant has met its initial burden to show that all of Cross-Complainant's causes of action alleged against Cross-Defendant are without merit. (Code Civ. Proc. §437c, subd. (p)(2) [moving party's burden]; <i>Aguilar v. Atlantic Richfield Company</i> (2001) 25 Cal.4th 826, 850-851 [same].) Cross-Defendant has met its burden by showing (1) that its duty to defend terminates once the limits of insurance provided in the primary and umbrella policies has been exhausted (Cross Defendant's SSUMF Nos. 2, 4-9); (2) that it has exhausted all coverage in the settlement of the underlying Lambert action (Cross-Defendant's SSUMF Nos. 33, 38); and (3) there were no other pending claims against Cross-Complainant at the time of the settlement of the Lambert Action (Cross-Defendant's SSUMF Nos.). Cross-Complainant has met its shifted burden to establish a triable issue of material fact. Cross-Complainant argues that Cross-Defendant's conduct in offering the policy limit to settle the <i>Lambert</i> action without obtaining a release from a right to indemnity from Cross-Complainant's co-defendant in the Lambert action at the time of settlement amounts to a breach of the insurance agreement. Specifically, Cross-Complainant contends there is a triable issue regarding Cross-Defendant's knowledge of the potential subrogation claim and Cross-Defendant's failure to inform Cross-Complainant of the potential subrogation claim prior to finalizing the settlement of the Lambert Action. (See Cross-